



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 10, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103282 regarding Police Officer Yorkt Peralta Del Jesus, Tax No. 967645 (DADS No. 2022-27208)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter, wherein CCRB substantiated allegations of improper entry, improper search and two allegations of failing to provide a business card against Police Officer Peralta Del Jesus.

The video evidence, along with statements from the complainants, the witness and the officers on the scene of the incident were thoroughly reviewed. In this matter, Police Officer Peralta Del Jesus and another officer responded to a call for assistance from an ACS child protective specialist. The ACS specialist told the 911 operator that the family at the location, hereinafter the complainants, would not allow the ACS specialist to observe the child in question and that she needed police assistance so that she could ensure that the child was safe. The ACS specialist expressed concern for the safety of the child and for several minutes had attempted to convince the complainants to allow her to observe the child. After arriving at the scene, Police Officer Peralta Del Jesus attempted to gain the complainants' cooperation and expressed to the complainants that there was concern for the child's safety. When the complainants opened the door and continually refused to show the child, Police Officer Peralta Del Jesus entered the residence. After a few moments, the family agreed to allow the ACS specialist to observe the child, which she did, whereupon the ACS specialist and the officers left.

It is apparent from the record that Police Officer Peralta Del Jesus had a good faith belief that exigent circumstances existed to enter the residence. Police Officer Peralta Del Jesus believed that the child might be in physical danger, presenting exigent circumstances. This belief is supported by the call for assistance from the ACS specialist and by the complaints' refusal to let the ACS specialist observe the child. Police Officer Peralta Del Jesus was professional and only

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entered the residence after several attempts to gain voluntary compliance failed. Thus, the entry and search was proper under the circumstances.

With regard to the failure to provide a business card, Police Officer Peralta Del Jesus stated that he believed this particular circumstance did not require him to offer a business card. However, the actions of Police Officer Peralta Del Jesus would be considered a law enforcement action and a business card should have been offered. However, it is apparent that Police Officer Peralta Del Jesus would benefit from training rather than disciplinary action. Therefore, Police Officer Peralta Del Jesus will receive training for the failure to provide a business card, in accordance with the Disciplinary System Penalty Guidelines.

Therefore, based on the foregoing, Police Officer Peralta Del Jesus will receive no disciplinary action for the alleged violation of Administrative Guide Procedure No. 304-06 (Prohibited Conduct/Abuse of Authority - Entry and Search) and will receive formalized training for the failure to provide a business card.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office